



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 10717
(THIRD REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 7 1997

EXPIRATION DATE: December 31, 1998
SEE Appendix A for PTE Expiration
date(s)

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. GRANTEE: Union Tank Car Company, East Chicago, Indiana
(See Appendix A of this exemption)
2. PURPOSE AND LIMITATION: This exemption authorizes a modified periodic test schedule for certain DOT specification tank cars, and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(c); 173.31 Retest Table 1.
5. BASIS. This exemption is based on Union Tank Car Company's application dated February 6, 1997 submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Sulfuric acid	8	UN1830	II
Sulfuric acid, spent	8	UN1832	II
Sulfuric acid, fuming less than 30 percent free sulfur trioxide	8	UN1831	I

FEB 7 1997

Continuation of 3rd Rev of DOT-E 10717

Page 2

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are DOT Specification 111A60W2 and 111A100W2 tank cars meeting all DOT requirements.

b. TESTING

I. The following periodic pressure test schedule is authorized for tank and interior heater systems, if any, for tank cars offered for transportation under the terms of this exemption:

Specification	Retest interval years for Tank and interior heater system ¹		
	Up to 10 years	Over 10 to 22 years	Over 22 years
DOT111A60W2	5	3	3
DOT111A100W2	5	3	3

¹ For non-lined or non-coated tank cars, an interval based on the following formula, but in no case shall the interval exceed the intervals specified above

$$i = \frac{t_1 - t_2}{r}$$

where:

I means the inspection and test interval
t₁ means the actual thickness
t₂ means the allowable minimum thickness
specified in 49 CFR Part 179
r means the corrosion rate per year

ii. The provisions specified in footnotes "d", "j", and "q" of 173.31⁶ apply.

FEB 7 1997

Continuation of 3rd Rev. DOT-E 10717

Page 3

c. MARKING - Each tank car must be marked "DOT-E 10717" in four inch letters and numerals, on a contrasting background, above the DOT specification number.

8. SPECIAL PROVISIONS.

a. Union Tank Car Company shall notify the Office of Hazardous Materials Exemptions and Approvals, in writing, of the tank car reporting marks, prior to offering any tank car for transportation under the terms of this exemption.

b. Each lined tank car must have been constructed with a plate thickness (shell and head) of $\frac{1}{2}$ inch which exceeds the plate thickness requirements specified in 49 CFR 179.201-1 Table. In addition, each tank car must have an acid resistant coating applied to the interior of the tank as stated in the applicant's request.

c. Each nonlined tank car must have been constructed with a plate thickness (shell and head) of $\frac{9}{16}$ inch which exceeds the plate thickness requirements specified in 49 CFR 179.201-1 Table.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident occurs during the unloading, such as undesired movement of cars resulting in damage to property or personal injury, by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

FEB 7 1997

Continuation of 3rd Rev. DOT-E 10717

Page 4

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12.

REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Mazzallo
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/7/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA